

BEFORE THE ARBITRAL TRIBUNAL COMPRISING OF
THE SOLE ARBITRATOR SENIOR ADV. NITIN SARDESSAI

AT PANAJI - GOA

IN THE MATTER OF:

VIKRAM SHAH

...Claimant

Versus

RIVA TRINDADE & 3 Ors.

...Respondent

APPEARANCES:

Adv. Harshad Bhadbade for the Claimant present via video conference.

*Adv. S. Desai with Adv. Jatin Ramaiya and Adv. Omkar Thakur for the
Respondent No. 1, 2 & 3.*

*Adv. E. Kotwal present via video conference with Adv. Swati Kamat
present physically for Respondent No. 4. Respondent No. 4 Mr.
Sadarangani present via video conference.*

ORDER DATED 29th JULY, 2026

1. By this common Order I propose to decide 3 different applications as a common thread runs through all of them, they being interconnected. The said applications are (I) Application for amendment of the Statement of Defense filed by Respondent Nos. 1, 2 and 3 dated 12.06.2026; (II)

Application for production of Additional Documents filed by Respondent No. 2 dated 12.06.2026; (III) Application seeking leave to file Additional Reply filed by Respondent Nos.1, 2 and 3 dated 12.06.2026.

(I) Application for amendment of the Statement of Defense filed by Respondent Nos. 1, 2 and 3 dated 12.06.2026.

2. The Application for amendment is filed on the ground that the amendment is intended to elaborate, clarify and particularize the existing defenses by spelling out the legal effects of the Articles of Association, the nature and kind of rights asserted by the Claimant, the status of the Respondent No.2 as a moiety holder, and effect of Joint Venture Agreement. It is further their case that certain documents came to the knowledge and attention of Respondent No.2 which necessitated the filing of amendment application, and application for production of documents which I shall advert to later in this Order.
3. I heard the arguments on behalf of all the parties. Adv. Shivan Desai on behalf of Respondents Nos. 1, 2 and 3 submitted that the amendment is necessary and essential to adjudicate the dispute. It is his case that some of the proposed averments are more in the nature of a legal ground as regards the right of a moiety holder. Certain other averments refer to the sale deed executed in 2014 in favour of Mr. Loankar, as also reference is

found to the Joint Venture Agreement and Kuval projects. All the said averments are necessary to decide the dispute before this Tribunal. It is further his case that since the parties were attempting a settlement, the said amendment was not proposed at any time earlier.

4. Adv. Bhadbade on behalf of the Claimant has raised serious objections to the allowing of the amendment mainly on the ground that the Statement of Defense was filed in 2025 and the application for proposed amendment is filed a year later. He contends that Section 23(3) and 23(4) does not permit such an exercise. He further argues that the documents based on which the amendment is proposed were always available to the parties. It is further his case that in terms of Section 4 of Bankers Book Evidence Act, the documents based on which the amendment is sought to be carried out can't be relied upon as the provisions of the said Section has not been followed.
5. Adv. Kotwal appearing on behalf of Respondent No.4 has also objected to the amendment on the ground that there are *malafides* and has taken me through the averments in the original Statement of Defense and certain documents to show that the averments sought to be incorporated by way of amendment is a *malafide* attempt. He also states that an exercise of this nature is futile as he points to the earlier roznamas that in fact Respondent Nos. 1, 2 and 3 had agreed to the appointment of a Receiver.

6. I have considered the arguments and gone through the pleadings and documents on record. It is clear from a series of decisions of the Hon'ble Supreme Court that a liberal approach has to be adopted to the pre-trial amendments. This Tribunal is of further opinion that amendment to the written statement / statement of defense cannot be put at the same pedestal as an amendment to the plaint / statement of claim. An amendment to the written statement / statement of defense deserves more latitude.
7. The arguments based on *malafides* are all touching the merits of the claim of Respondent Nos. 1, 2 and 3. The said submissions points out to the inconsistency of the stands. One of the cardinal principles of law is that while deciding application for amendment is that merits of the proposed amendment cannot be looked into, and in any case it is not argued that the *malafides* pertain to filing of the application for amendment. It is a fact as noted by this Tribunal that the parties were seriously exploring a settlement and the matter had to be adjourned on a considerable number of occasions for enabling the parties to try and settle the dispute. In these circumstances, delay if any in filing of these amendment applications will not come in way of the amendments sought to be made.
8. I have gone through the proposed amendments. They all are necessary and essential to adjudicate the present dispute. No prejudice can be caused

either to the Claimant or the Respondent No.4 by allowing the said application as the parties shall have ample opportunity to cross the Respondent Nos. 1, 2 and 3.

9. The argument based on Section 4 of the Bankers Book Evidence Act has no substance as the said Act will come into play at the time of exhibiting of documents in evidence. At this stage, the Tribunal is not called upon to decide the admissibility of said documents.
10. The material on record discloses that although the documents sought to be produced were available at the time of filing of the Statement of Defense, it is the Applicants' case that it came to their attention and notice only recently. At this stage, such a statement cannot be doubted because the original pleadings before this Tribunal clearly disclose that late Pascoal Trindade was the main party / handling business on behalf of the Partnership and it is only after the death of the late Pascoal Trindade that Respondent Nos. 1, 2 and 3 came into the forefront of the business. I therefore hold that the amendment is essential to the present adjudication. The delay, if any, in filing the same has been duly explained, and there are no legal fetters of whatsoever nature in allowing the same. The application for amendment is thus allowed. The Respondent Nos. 1, 2 and 3 are directed to carry out the same within 7 days of the receipt of this order

and serve a copy of the same to the other parties / their lawyers, so that they can file any pleadings that they may desire *vis-à-vis* the same.

(II) Application for production of Additional Documents filed by Respondent No.2 dated 12.06.2026

11. It's the case of the Respondent Nos.1, 2 and 3 that the documents now sought to be produced came to the attention of the Respondent No.2 only recently. The said documents throw light on the case as sought to be pleaded by the said Respondents. That the said documents also have prompted the Respondent Nos. 1, 2 and 3 to carry out certain amendments so as to particularize, clarify and elaborate the Statement of Defence including raising of some legal grounds.
12. It's argued by Adv. Shivan Desai that these documents are essential to the litigation and will further the cause of justice as the same are directly related to the Defense which is raised by Respondent Nos. 1, 2 and 3. That there was settlement talks between the parties and during this period much attention was not paid to the contents of those documents as a sincere effort was made towards negotiating a settlement.
13. Adv. Bhadbade vehemently opposed the Application on the grounds that the Application was vague. That the same does not disclose who acquired knowledge of the said documents. That the documents are not relevant to

the controversy. He also argued more or less based on the arguments made by him as regards the Application for Amendment.

14. Adv. Kotwal also opposed this application on the grounds that the same is *malafide*. He argued that only certain extracts are sought to be produced and not the entire document. He further argued that after having agreed to the appointment of a Receiver, the Respondent Nos. 1, 2 and 3 cannot now turn around and seek to produce additional documents and proposed amendments. He also argued that the said documents do not further the cause of Respondent Nos. 1, 2 and 3. He pointed out Section 2A of the Bankers Book Evidence Act to show that the said Act applies to arbitration proceedings as well.
15. I have considered the arguments and applied my mind to the pleadings and documents on record. The jurisprudence as regards production of documents as enunciated by the Hon'ble Supreme Court and the various High Courts is that if there are documents which can demonstrate a party's case, they should not be shut out. The concerned parties can cross-examine the witness who produces these documents and they have all the opportunity to advance the argument that the said documents do not advance the cause of the person seeking to produce it.

16. As regards Bankers Book Evidence Act, no doubt the same applies to arbitration proceedings. But at this stage, it becomes irrelevant as the Tribunal is not called upon to decide on the admissibility of the same. The same shall be considered at the stage of evidence.
17. In terms of Section 19 of the Arbitration Act, the Arbitral Tribunal is not bound by Civil Procedure Code or the Evidence Act, therefore the technicalities concerning documents does not apply to arbitral tribunal. I have seen the documents which are sought to be produced. It can't be said that the same are not relevant to the dispute in question.
18. At this stage, the Tribunal is not considering whether the said documents prove or disprove the case of Respondent Nos. 1, 2 and 3.
19. It is true that the parties did consider settlement and seriously worked towards the same. It is also true that at the relevant time, parties also agreed to appointment of a Receiver. That however will not preclude the parties to produce any documents relevant to the litigation as the settlement talks have failed.
20. Even if it is considered that the documents were available to the party while filing their Defense, it cannot be said that the same cannot be produced now as the trial is yet to begin.

21. In view of the above, I find no merits in the objection to the production of documents, and I permit the Applicant to produce the same by allowing the Application for Production dated 12.06.2026.

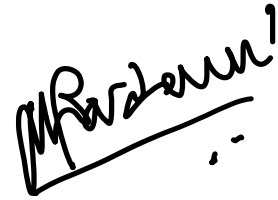
(III) Application seeking leave to file Additional Reply filed by Respondent Nos.1, 2 and 3 dated 12.06.2026

22. This Application for Leave has been necessitated in view of the Additional Documents that came to the notice / attention of respondent nos. 1, 2 and 3. It is based on these documents that an Application for Amendment was filed. This Application seeking leave to file addition reply is a consequence of the Additional Documents and the proposed amendment.
23. There is no dispute raised either by the Claimant or the Respondent No.4 that the leave to file Additional Reply is being sought in view of the Additional Documents sought to be produced and the proposed amendment sought to be carried out. As by this common order, I have allowed the application for amendment as also the application for production of additional documents, as a consequence, this Application seeking leave to file Additional Reply is also being allowed. I therefore grant leave to the Respondent Nos. 1, 2 and 3 to file Additional Reply as annexed to the said Application and marked as Annexure A.

24. The matter stands adjourned to **20th August, 2026** at **5.30 p.m.** for Arguments on S. 17 Applications filed by the Claimant and Respondent No. 1, 2 & 3. If the parties desire to file any pleadings *vis-à-vis* the amended Statement of Defense, they may do so before the 20th August 2026 by serving prior copies to the other side.

Place: Panaji – Goa

Date: 29.07.2026

A handwritten signature in black ink, appearing to read 'Nitin Sardesai', written over a horizontal line.

Sr. Adv. Nitin Sardesai

Sole Arbitrator